



Licensing Sub-Committee

MINUTES of the OPEN section of the Licensing Sub-Committee held on Thursday 22 January 2026 at 10.00 am at Online/Virtual

PRESENT: Councillor Renata Hamvas (Chair)
Councillor Barrie Hargrove
Councillor Charlie Smith

**OTHER
AUTHORITIES
PRESENT:** P.C. Walter Minka Agyeman, Metropolitan Police Service

**OFFICER
SUPPORT:** Toyin Calfos, legal officer
Charlotte Precious, legal officer
Andrew Heron, licensing officer
Wesley McArthur, licensing as a responsible authority officer
Richard Earis, environmental protection team
Farhad Chowdhury, health and safety officer
Andrew Weir, constitutional officer

1. APOLOGIES

This was a virtual licensing sub-committee meeting.

The chair explained to the participants and observers how the virtual meeting would run. Everyone then introduced themselves.

There were no apologies for absence.

2. CONFIRMATION OF VOTING MEMBERS

The voting members were confirmed verbally, one at a time.

3. NOTIFICATION OF ANY ITEMS OF BUSINESS WHICH THE CHAIR DEEMS URGENT

There were none.

4. DISCLOSURE OF INTERESTS AND DISPENSATIONS

There were none.

5. LICENSING ACT 2003: TESCO EXPRESS, 562 ROTHERHITHE STREET, LONDON SE16 5EX

The licensing officer presented their report. Members had questions for the licensing officer.

The applicant and their legal representative addressed the sub-committee. Members had questions for the applicant and their legal representative.

The licensing sub-committee heard from three other persons, objecting to the application. Members had questions for the other persons.

The licensing sub-committee adjourned at 11.04am in order to take legal advice in relation to an issue raised by the other persons.

The licensing sub-committee reconvened at 11.20am.

The licensing sub-committee noted the written representation of an other person who was not present at the meeting.

All parties were given up to five minutes for summing up.

The meeting adjourned at 11.36am for the sub-committee to consider its decision.

The meeting reconvened at 12.10pm and the chair advised everyone present of the decision.

RESOLVED:

That the application made by Tesco Stores Limited for a premises licence to be granted under the Licensing Act 2003, in respect of the premises known as Tesco Express, 562 Rotherhithe Street, London SE16 5EX be granted as follows:

Supply of Alcohol (off Sales)	Monday to Sunday from 06:00 to 23:00
Opening hours	Monday to Sunday from 06:00 to 23:00

Conditions

The operation of the premises under the licence shall be subject to relevant mandatory conditions, conditions derived from the operating schedule highlighted in Parts A, B, E, F, G, H, J, K, L, and M of the application form and the conditions agreed with the Metropolitan Police Service.

Conditions agreed with the Metropolitan Police Service

1. That a CCTV system shall be installed and maintained in full working order. The CCTV system will record footage of evidential quality in all lighting conditions and should be able to capture a clear facial image of all persons that enter the venue. All public areas will be covered by the CCTV system including the frontage of the premises.
2. That all CCTV footage shall be kept for a period of thirty-one (31) days and shall be made immediately available to Police and authorised council officers.
3. That at least one member of staff shall be on duty at all times the premises is open that is trained in the use of the CCTV and able to view and download images to a removable device on request of police or council officers.
4. That clearly legible signage shall be prominently displayed where it can easily be seen and read by customers advising to the effect that CCTV is in operation at the premises. The signage shall be kept free from obstructions at all times.
5. That all relevant staff shall be trained in their responsibilities under the Licensing Act 2003, the promotion of the licensing objectives and the terms and conditions of this licence. Records pertaining to such training ('the staff training logs') shall be kept at the premises, shall be updated every 6 months and shall be made immediately available to responsible authority officers on request. The training logs shall include the trainee's name (in block capitals), the trainer's name (in block capitals), the date(s) of training and a declaration that the training has been received and understood by

the trainee. If the staff training logs are a paper hardcopy, then the signature of the trainee, the signature of the trainer shall be included. That all Digital records of training and/or logs shall be made immediately available to Police and authorised council officers

6. That a written record of all staff authorised to sell alcohol at the premises shall be kept at the premises and will be made available to responsible authority officers immediately on request. The authorisation record shall include the name and address of the premises, the name of the licensee, the name of the DPS and the names, addresses and dates of birth of all staff authorised to sell alcohol at the premises.
7. That no beers/ciders with an alcohol by volume (ABV) of above 7.5% shall be displayed, sold or offered for sale at the premises.
8. That alcohol shall not be stored or displayed less than two (2) meters away from the premises entrance unless stored behind the staff counter.
9. That all off sales shall be made in sealed containers for consumption away from the premises.
10. That a notice shall be displayed in a prominent position at the exit of the premises, asking customers to respect nearby residents and to leave quietly, not to loiter outside the premises and not to drink alcohol products in the street.
11. That an incident log shall be kept at the premises to record details of any of the following occurrences at the premises: a. Instances of anti-social or disorderly behaviour b. Calls to the police or other emergency services c. Any malfunction in respect of the CCTV system d. All crimes reported by customers or observed by staff at the premises. The incident log shall be made available for inspection by Police and authorised council officers on request.

Recommendations by the Licensing Sub-Committee

1. That wherever possible, the applicant shall agree to endeavour not to use single use plastics.
2. That the applicant shall establish a line of communication with the residents of 562 Rotherhithe Street, London SE16 5EX and other neighbouring residents to discuss issues that may arise.

Reasons

The licensing sub-committee convened to consider an application for a new premises licence in respect of the premises known as Tesco Express, 562 Rotherhithe Street, London SE16 5EX.

The licensing sub-committee heard from the licensing officer who outlined the nature of the application. He confirmed that the premises was not located within a CIA and that the hours applied for, were inconsistent with Southwark's statement of licensing policy 2021-2026 in that the terminal hour exceeded the recommended closing hour by one hour.

The officer went on to state that the only objecting responsible authority, the Metropolitan Police Service, had conciliated after the applicant had agreed to abide by a number of conditions put forward by it. The remaining objectors, who are local residents, did not oppose the granting of the licence but challenged the closing time the applicant applied for.

The officer explained there are four other person objectors and that the premises was a new build, situated under a number of residential flats.

In answer to the committee's questions, the licensing officer stated that the terminal hour in Southwark's statement of licensing policy for this type of premises is 23:00. He went on to state that the policy is guidance.

The licensing sub-committee heard from the applicant's representative. He stated there was no issue to the premises licence being granted and that the contention was in the hours of operation. He said the premises is to operate as a Tesco Express and that is the smallest format of the store type.

He stated that the alcohol display is small in comparison to the rest of the store and alcohol sales form a very small part of the business. The store would stock around five thousand products and on the basis of customers' habits at other similar stores, customers would usually do a two to three meal shop in a single visit. The premises is not a traditional off licence but rather, a supermarket and that the organisation is an excellent operator with many examples of best practice.

He noted that none of the responsible authorities had outstanding objections to the application and said, crime figures were reviewed prior to applying for a licence and the area does not suffer from high levels of antisocial behaviour or crime and disorder. The applicant respectfully stated that Southwark's policy was slightly at odds with the Government's Section 182 guidance in that, supermarkets are given a degree of flexibility. He went on to point out, the views of responsible authorities concerning crime and disorder and anti-social behaviour should be given weight.

The applicant's representative stated that it understood the concerns of the residents explaining, there is another similar premises about a kilometre away which operates from 6am to midnight. He said there have been no issues with the other similar premises in the Borough.

The applicant explained the other systems and policies in place within the premises such as CCTV, The Think 25 policy, which is supported by mystery shopping every month in each store to ensure the policy is being implemented effectively. He explained that the store has a central system called the Hub, which

is operated 24 hours a day, seven days a week. The Hub assists stores that have issues or wishes to raise concerns. The hub can port into local stores and intervene as appropriate.

The representative said, comprehensive, ongoing training is given to every member of staff involved in the sale of alcohol. He explained the organisation has its own detailed policy concerning the sale of alcohol which incorporates the “you say no we say no” policy regarding the refusal of sales.

A security assessment is carried out every 8 weeks to assess whether adequate security is in each store and that they have local area guards who can support stores as necessary. He concluded, the store also has a good neighbour policy which ensures that the store will have a minimum impact on an area. He went on to opine that the lack of objections by responsible authorities is a reflection of the effectiveness of those policies.

In response to anti-social patrons he stated, the organisation does not tolerate anti-social behaviour. If persons are known to act in an anti-social way, they would not be served again. If people behave badly within the store, they are asked to leave. If they refuse to leave, the police will be called and that person may face a ban. He said that the organisation has 8 stores within the borough operating from 06:00 to 23:00 with some of them operating until midnight.

In answer to the committee’s questions:

He confirmed that the store was due to open the following month and anticipates alcohol sales forming a very small part of the business model. The sale of alcohol tended to slow after 9pm, provided there were no issues concerning a particular area and subject to the views of the police, they would ordinarily aim to match alcohol sales and opening hours.

In relation to anti-social behaviour, if a patron were to be anti-social, they would be asked to leave and if that person refused, they would call the police. He stated the on-duty management team had access to the Hub and area guarding who could intervene where anti-social behaviour became an issue and that all would work closely with the police.

Of the crime statistics reviewed for a 250-metre radius of the premises, he estimated there was less than one incident per week in the area and in the park itself, less than one incident a month.

Confirming familiarity with Southwark’s statement of licensing policy, he said the organisation had implemented many measures to ensure they are as green as they can be and is working with suppliers to ensure they reduce it footprint further.

The licensing sub-committee heard from other persons. They based their objections on the prevention of crime and disorder, the prevention of public nuisance and public safety.

Other person 1 confirmed that he did not object to the grant of the licence but, did object to the daily opening until midnight and the off sale of alcohol up to that time. He mentioned that the premises is adjacent to a public park and in his lived experience, the park is a natural gathering point in the evenings. During the summer months, the park will become noisy and allowing alcohol to be served until midnight every day, risks turning the premises into a last point of sale for alcohol in the area.

He stated that all the other local licensing premises close at 23:00 and believed the late closing would further encourage people to potentially loiter, drink in or around the park, or congregate outside the building. He noted that the area had recently seen an increase in footfall after a nearby hotel was converted into a hostel.

He described how the park is generally unlit, unsupervised and was concerned for public safety particularly as people tended to congregate there and immediately outside the building. He said the existing issues around the park will be exacerbated if alcohol was to be introduced.

He also said, the fans required for the premises were very loud and asked that the premises close at 23:00

The committee heard from other person 2 who endorsed the concerns raised by other person one. She stated that the premises was displaying a sign which said the premises will open between 07:00 to 22:00 daily. She wanted the licence to reflect the sign that had been placed on the premises door. She produced a photo of the opening sign and published the same to the meeting's chat room. She was told by the chair not to post anything else without permission.

The applicant was not aware of a sign suggesting the later opening times and earlier closing times. The applicant's representative was able to confirm that planning permission allowed a closing time of 23:00

The committee heard from other person 3 who thought that the opening time as per the sign of 07:00 was too early and suggested that the premises open at 08:00. She also stated the noise generated from the fans on the premises were very loud.

A committee member was concerned about the photograph that had been placed in the meeting's chat room and ask for a short adjournment for legal advice.

After a short break, the committee returned to ask the other persons when the sign was first displayed on the premises. The residents confirmed that the sign was put up recently.

As the committee were satisfied the sign placed on the premises could not have undermined the consultation process, they disregarded this new information.

The committee explained to both other persons, the application before them concerned the licensable activities and therefore issues with noise emanating from the fans will need to be raised with the environmental health team.

In answer to the committee's question, other person one confirmed the problem was made worse when a local hotel changed to a hostel. He was asked to provide his view on the policies outlined by the applicant regarding anti-social behaviour. He stated that he was comforted by the policies but remained concerned around the level of control the premises could exercise on property they were not responsible for. He suggested that a line of communication ought to be established between the residents and the applicant.

In summing up, the applicant's representative stated that he would encourage residents to speak with the store manager and that dialogue would be welcomed. He reiterated that the responsible authority did not raise anti-social behaviour as an issue and suggested that existing problems would not be exacerbated by the grant of a licence in the form requested.

Upon considering the objections and conditions agreed; the licensing sub-committee agreed with the licensing officer and the applicant that a licence should be granted.

They went on to consider whether it was appropriate for premises to extend the recommendation of the licensing policy. The committee were persuaded that there was an ongoing issue with loitering and anti-social behaviour in the adjacent park. The committee were concerned that to grant the hours applied for in the application would leave the residents vulnerable as all the other places available to get alcohol close at 23:00.

The sub-committee were not persuaded that the conditions agreed with the Metropolitan Police Service and the organisations own policies could be allay the concerns raised by other persons in this instance. On that basis, the licensing committee granted a licence in line with the statement of licensing policy.

In reaching its decision, the licensing sub-committee had regard to all the relevant considerations, the four licensing objectives and considered that its decision was appropriate and proportionate in all the circumstances.

Appeal rights

The applicant may appeal against any decision:

- a. To impose conditions on the licence
- b. To exclude a licensable activity or refuse to specify a person as premises supervisor.

Any person who made relevant representations in relation to the application who desire to contend that:

- a. The licence ought not to be granted; or
- b. That on granting the licence, the licensing authority ought to have imposed different or additional conditions to the licence, or ought to have modified them in a different way

may appeal against the decision.

Any appeal must be made to the Magistrates' Court for the area in which the premises are situated. Any appeal must be commenced by notice of appeal given by the appellant to the justices' clerk for the Magistrates' Court within the period of 21 days beginning with the day on which the appellant was notified by the licensing authority of the decision appealed against

6. LICENSING ACT 2003: AFRIKIKO, 871 OLD KENT ROAD, LONDON SE15 1NX

The licensing officer presented their report. Members had no questions for the licensing officer.

The applicant and their witness (their brother) addressed the sub-committee. Members had questions for the applicant and their witness.

The Metropolitan Police Service officer addressed the sub-committee. Members had questions for the police officer.

The environmental protection officer addressed the sub-committee. Members had questions for the environmental protection officer.

The health and safety officer addressed the sub-committee. Members had questions for the health and safety officer.

The officer representing licensing as a responsible authority addressed the sub-committee. Members had questions for the officer.

All parties were given up to five minutes for summing up.

The meeting adjourned at 1.37pm for the sub-committee to consider its decision.

The meeting reconvened at 2.02pm and the chair advised everyone present of the decision.

RESOLVED:

That the application made by Afrikiko Restaurant & Night Club Ltd for a premises licence to be varied under s.17 of the Licensing Act 2003 in respect of the premises known as Afrikiko, 871 Old Kent Road, London SE15 1NX be refused:

Reasons

On 25 November 2025 Afrikiko Restaurant and Night Club Ltd made an application for a new premises licence to be granted under Section 17 of the Licensing Act 2003.

The licensing officer and author of the report informed the sub-committee that the premises had an extensive history of both operation and applications, and reminded them that each application must be considered on its own merits.

Two additional documents submitted by the police were circulated to all parties prior to the hearing. Both are witness statements regarding an incident of unlicensed activity on New Year's Eve.

The applicant, Daniel Dornor, attended the hearing along with his brother who gave his name as Nana. They informed the sub-committee that they were there to plead for a premises licence. They were happy to accept whatever licensable hours the sub-committee deemed appropriate, be it till 02:00 hours, 01:00 hours, 00:00 hours or the basic 23:00 hours. They wanted to start anew, with a good beginning, working with the responsible authorities.

They intended to develop a management plan, including staff training and emergency contact procedures. They would review their operations regularly and make adjustments as needed, making sure to prevent crime and keep people safe. They would prevent underage sales, anticipate objections and mitigate them. They intended to offer solutions and compromise.

The would take extra steps on weekends to prevent noise disturbance, and to review their noise management position with local residents. They would tighten security with all necessary steps, particularly with body searches, CCTV that would be stored for 31 days, an ID scanner, metal detectors and security officers. They employed two ex-militia men from Ghana to act as security when operating under a temporary events notice (TEN) and no more than five people were permitted to smoke outside at a time.

The restaurant currently permitted customers to purchase alcohol at the off-licence across the road from the premises to drink with their meals. As customers were buying the alcohol themselves, this could sometimes be hard to manage without a licence, for example customers took their drinks outside with them to smoke. If the premises were able to supply alcohol themselves, they would have better control over the customers actions.

They explained that they sold alcohol when operating under a TEN, they also accepted they had been selling alcohol on New Year's Eve, even though the TENs did not start until New Years Day. The applicant initially stated that this was an isolated event but later accepted that it had happened on other occasions in order to save the amount of TENs they were permitted to have.

The applicant submitted there had been no issues with the restaurant since February 2025, when the health and safety team inspected the premises. Since then, they had put everything required in place and had moved from a zero hygiene rating to a five star rating.

The applicant explained that, if they were given a licence, even to 23:00 hours, things would improve. They considered this would be better than playing hide and seek.

The representative for the Metropolitan Police Service informed the sub-committee that the area within which the premises was situated was residential and not suitable for a late-night bar or nightclub. The premises was flanked by residential buildings, both old and new.

They considered the applicant and Mr Dornor had shown total disregard for the licensing regime and the licensing objectives on numerous occasions. The premises had been reviewed twice; one review concerned a murder that occurred outside of the premises, the other was during the pandemic when government restrictions were ignored. The latter led to the licence being revoked and the premises has since been operating as a restaurant with a takeaway outlet to the side of the venue.

The premises also had a history of operating licensable activities without the correct authorisation, the most recent of these occurred on New Year's Eve when the premises were supplying alcohol prior to a TENs being in place. They stated the premises had shown no respect for the legislation put in place to protect the public and it was not suitable to be an alcohol-led premises.

The police explained that they would be more likely to support a food-led premises, with alcohol supplied ancillary to the sale of food. However, they would want to suggest stringent conditions and to discuss these with the premises in advance. The premises had not contacted the police to discuss such an operation in advance of the hearing, if they had, it may have been possible to reach agreement.

The representative from the environmental protection team stated that the hours requested in the application exceeded those recommended in the statement of licensing policy 2021-2026 (SOLP) for a residential area. The area was becoming increasingly residential, with many new developments. They did not consider the area to be a suitable late-night or nightclub venue.

The applicant had a long history of regulatory non-compliance, as set out within the agenda pack. They considered the application failed to include appropriate conditions in respect of the licensing objectives and they did not have confidence that the applicant would adhere to any licence or conditions imposed upon it. They considered this to be a fundamental issue.

They had also not been consulted in respect of the applicant's proposal for the premises to be a food-led licenced restaurant. They considered that such a premises would be a much lower risk of public nuisance but they still did not have confidence in the applicant complying with a licence or any conditions imposed.

The officer from the health and safety team, as a responsible authority, informed the sub-committee of a visit they made to the premises on 14 February 2025. During the visit, three notices and one prohibition notice was delivered to the DPS, Daniel Dornor.

A further inspection was conducted on 25 April 2025, whereupon Mr Dornor produced an extractor cleaning certificate. In March 2025, he also produced an electrical installation condition report which was later found to be fraudulent.

Mr Dornor was interviewed under caution in respect of this and he stated he had paid an individual £300 to obtain the report. Officers considered he was unable to satisfactorily explain why the document was handwritten, or why it was not issued by the person whose name was on the document.

On 25 April 2025, Mr Dornor produced a handwritten certificate purporting to show the service of all fire-fighting equipment. The author of the certificate was contacted and they confirmed they had not issued it and that their company always issued typed certificates, it was therefore deemed fraudulent.

The team had also received an email from the premises business address, purporting to be sent by a Mr Samuel Odom. The tone of the email was deemed threatening. When this was mentioned in interview, Mr Dornor denied knowing Mr Odom, despite the team having met them together previously. He also denied sending the email.

Given Mr Dornor's propensity to mislead officers, the responsible authority had no confidence in the applicant's ability to comply with a premises licence or uphold the licensing objectives. The premises had since provided some acceptable certificates, but a further inspection was necessary to determine whether the required works had been completed, this includes fire separation work requested by the London Fire Brigade.

The applicant informed the sub-committee that he had completed all works required of him and the London Fire Brigade had approved the works required by them.

The officer representing licensing as a responsible authority drew the sub-committee's attention to the photos in the agenda, illustrating the many residential buildings that surround the premises. They did not consider that any conditions had been offered by the premises to mitigate or prevent public nuisance and reiterated that the hours applied for far exceeded those recommended in the SOLP for that area, namely 23:00 hours.

The sub-committee were reminded of the long history of the premises and the DPS regarding breaches of the licensing objectives and regulatory regimes. The Licensing Authority considered that granting the applicant a licence would completely undermine the promotion of the licensing objectives.

The sub-committee considered all of the evidence before them. They noted that four responsible authorities, all experts in promoting the licensing objectives, had strongly objected to the application. All four stated that they had no confidence in the premises to promote the licensing objectives.

The premises was situated within a residential area. Page 42 of the SOLP sets out the recommended closing times for restaurants, cafes, public houses and other drinking establishments as 23:00 hours daily. Night-clubs were not considered appropriate for this area as per page 43 of the SOLP.

The sub-committee considered there was no reason to divert from the SOLP.

They noted that there was a question over whether the works required by the London Fire Brigade had been complied with. If they had, the sub-committee suggested the applicant forward confirmation of this to the health and safety team so they have a record of it.

Whilst the applicant appeared to have positive suggestions regarding the management of the premises as a restaurant, a food-led operation, the policies, procedures and other suggested measures had not been drafted, incorporated or tested. Nor had the premises consulted with any of the responsible authorities in advance of the hearing.

Given the history of non-compliance by the premises and Mr Dornor, the sub-committee would need to see evidence of the proposals as well as consultation with the responsible authorities. The sub-committee appreciated the honesty and accountability shown by Mr Dorner for the mistakes he had made, however, there had not been a sustained period of compliance with the licensing objectives, or of any regulatory regime.

In accordance with paragraph 38, on page 17 of the SOLP, each application was judged on its own merits. The sub-committee has seen and heard evidence of repeated disregard for the law and regulatory regimes. In the recent past there has been breaches of food safety legislation, health and safety legislation, allegations of fraud and continued licensing breaches. The sub-committee were not satisfied that the premises were able to promote the licensing objectives or comply with regulatory regimes, nor did they hear any evidence that would allay their concerns. The application was therefore refused.

In reaching this decision, the sub-committee had regard to all of the relevant considerations and the four licensing objectives and considered that this decision was appropriate and proportionate.

Appeal rights

The applicant may appeal against any decision:

- a) To impose conditions on the licence
- b) To exclude a licensable activity or refuse to specify a person as premises supervisor.

Any person who made relevant representations in relation to the application who desire to contend that:

- a) The licence ought not to be granted; or
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may appeal against the decision.

Any appeal must be made to the Magistrates' Court for the area in which the premises are situated. Any appeal must be commenced by notice of appeal given by the appellant to the justices' clerk for the Magistrates' Court within the period of 21 days beginning with the day on which the appellant was notified by the licensing authority of the decision appealed against.

The meeting ended at 2.05pm.

CHAIR:

DATED: